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This is a motion for reconsideration. In it, Hart-Flaherty seeks reconsideration of the court's order regarding collateral estoppel, which was made on April 21, 2026. Hart-Flaherty complains that the court had not read all of the papers she had submitted at the last substantive hearing. Part of the problem is that papers tend to be filed at the last minute.

At the most recent hearing, it happened again. Literally the morning of the hearing, Hart-Flaherty's reply papers were uploaded.

But that time, it was not really her fault. Late opposition papers were filed by plaintiff a few days before. Those untimely papers were what caused the response, and the court cannot blame Hart-Flaherty for that; rather, the fault there lies with plaintiff. However, to deal with that issue, the court continued the hearing and ordered that no further papers be filed relating to the now-fully-briefed motion for reconsideration. That is where we now find ourselves. The court believes it has now read all of the papers that have been filed.

At the prior hearing, plaintiff moved for a finding that Hart-Flaherty was collaterally estopped from arguing that she in fact owned the property. That matters for two reasons. First, of course, if Hart-Flaherty owns the property, then plaintiff cannot evict her. Second, under a relatively long line of cases, the UD timeline is not proper where the defendant claims that it is the defendant who actually owns the property in question. When that occurs, there is in essence a debate between the plaintiff and the defendant as to which is the true owner. Our courts have squarely held that the 20-days-to-trial UD timeline is not proper to strip away a person's claim of ownership and title to property.

The court notes that this rule applies only where the defendant claims to be the owner. Where the defense is that the plaintiff is not the owner because some third party really owns the property, the UD process goes forward and the written title generally will be enough. (Here, the written title is from the trustee who sold the property.)

Because Hart-Flaherty claimed to own the property, this court refused plaintiff's repeated requests to treat this as a UD case and set it for immediate trial. The case was filed on December 27, 2023, and trial is now set for July 2026—two and a half years after filing. It has proceeded along a normal litigation time line, and nothing has (for the most part) stopped Hart-Flaherty from litigating the case in the normal course.

But during that period, Hart-Flaherty has been involved in a number of other suits. It is a little bit complicated because the parcel at issue is one of three somewhat related parcels originally owned by Hart-Flaherty's former spouse, Flaherty (who is in default in the instant case).

Hart-Flaherty has no written title, but she claims that she has ownership rights due to a marriage settlement with Flaherty entered into some years ago. To the best of the court's knowledge, though, that settlement was never reduced to a recorded or formal change in title. In any event, there have been a number of cases in which Hart-Flaherty has claimed some ownership interest in the property. The court has considered all of those cases and the court believes that Hart-Flaherty has had her day in court. She has tried to intervene claiming the ownership interest she claims here. She has been denied on the merits each time, and she has had no success in the appellate courts either. She has sought reconsideration in some courts, but to no avail. The court emphasizes that Hart-Flaherty's attempt to intervene was not denied on procedural grounds, such as an untimely filing. It was denied on the basis that she had no legal ownership interest. (That case was *Flaherty v. Thayer*, Case No. 23SMCV02778.) There was also a bankruptcy proceeding that raised the issue and that has been affirmed on appeal. The court is aware that it might still be pending on certiorari to the US Supreme Court. But under federal law, a petition for certiorari does not deprive a lower court's final judgment of collateral estoppel effect and this court will give the federal court judgment no less force that would

the federal court that issued it. That said, and this court has said it a lot, if the US Supreme Court grants the petition—meaning that it elects to hear the case on the merits—the court will stay the instant case immediately and await the Court's merits ruling. In other words, if the Supreme Court decides to take the matter up, that will do. The court will hold the case until the Court's merits ruling. As of now, though, the court in its prior order ruled that Hart-Flaherty was now collaterally estopped from claiming that she in fact owns the property.

A motion for reconsideration is governed by CCP section 1008. It requires that the moving party demonstrate new law or facts or circumstances not reasonably available to it at the prior hearing. The court does not see any of that. What the court sees, for the most part, is Hart-Flaherty making the same arguments that she has been making for a long time now and that have been repeatedly rejected by other courts. The court is aware of Hart-Flaherty's claim that her prior opposition was wrongly rejected for filing and thus not considered at the prior hearing. Part of the problem is that the prior opposition does not appear to have been timely filed. But whether or not it was properly filed then, the court has read it now, and the court does not reach a different conclusion.

It comes down to this.

UD is the proper remedy for one claiming ownership of land to evict one who allegedly is wrongfully in possession. In the typical UD case, the defendant—the person in possession—cannot be heard to question the plaintiff's title if the plaintiff can produce title that appears proper on its face. That is a powerful doctrine. The argument that plaintiff got title improperly from another party does not matter in the UD context; the defendant is still evicted.

The exception to that rule is where the defendant claims that defendant in fact is the rightful owner of the property.

Where the defendant is able to claim that not only does plaintiff lack true title, but that defendant is the true title holder, the law will allow the case to develop along a normal litigation line rather than the extremely limited and streamlined UD framework.

Here, Hart-Flaherty claims she is the true title holder, but there are

some problems. The first is that she claims her title not by right of any recorded document in the County Recorder's office, but rather through a dissolution order that purports to give her a 50% interest in 17474 Tramonto Drive. If that order had been reduced to a deed or some other recorded document—as would typically be the case—then we might not be here. Because Flaherty would only have had a 50% recorded undivided interest in the property (the court assumes it is undivided), he could only borrow money against that interest, not the property entire. Fraudulently obtained or not, a deed of trust purportedly signed only by him would be inadequate to convey title (or the right to obtain title later) as to the whole property. But that did not happen. Instead, at least insofar as the court can tell, Flaherty had 100% official title in 17474 Tramonto at the time of the purported deed of trust. And that was the question that was at issue and considered in the case where Hart-Flaherty sought to intervene. The court is also aware that the intervention motion was denied in part on the theory that Hart-Flaherty had not provided the prenuptial agreement or dissolution agreement giving her the 50% interest, whereas she claims she did provide that. But the court later did consider the issue. In its later order, the court considered both the prenuptial agreement and the dissolution agreement. The court was aware of the dissolution agreement, which predated the deed of trust, but found that it was not sufficient to overcome the presumption indicated on the recorded instruments giving Flaherty complete ownership of 17474 Tramonto. That is a decision on the merits, and it is collateral estoppel. The court also noted that the property was sold at the trustee's sale, but that Hart-Flaherty did not redeem the property, which would be the way allowed by law to regain title. The court also made reference to the attempt to stop the trustee's sale by way of bankruptcy, and that the bankruptcy action was dismissed as frivolous.

The court has read and considered Hart-Flaherty's reply. In it, she claims that these other cases involved a different parcel, so they could not have adjudicated her rights concerning the property here in question. The court remains unconvinced. The gap in Hart-Flaherty's reasoning is this. It could well be that the earlier case involved 17470 Tramonto. But it was a quiet title case and it appears that part of the issue was an alleged easement held by 17474 Tramonto, which is the parcel Hart-Flaherty claims she

owns (or at least owns in part), and from which plaintiff seeks to evict her. In a quiet title action involving an easement, one proper party is the owner of the property with the alleged easement. That is why when Hart-Flaherty attempted to intervene, her ownership in 17474 Tramonto was at issue even though the quiet title was for 17470 Tramonto, a parcel she agrees she does not own. Only the property owner of the dominant estate (allegedly 17474 Tramonto) had standing to intervene in that action to protect or be heard on the easement.

If Hart-Flaherty did have title to 17474 Tramonto, then she would have standing to be heard in the 17470 Tramonto case and it would be error to exclude her from attempting to enforce her easement, but not otherwise. The court notes that the case is on appeal, but the court was not aware that Hart-Flaherty's intervention issue remained open on appeal. And none of that really addresses the bankruptcy case, which raises similar concerns.

Therefore, the motion for reconsideration is DENIED. However, the court will make one note. In various filings, Hart-Flaherty states that

she can produce the notary public who notarized the various trust deeds pursuant to which the sale of the property occurred in which plaintiff obtained title. Hart-Flaherty says that this notary will testify that she (the notary) committed perjury because although she notarized the deeds, they were not actually signed. If in fact Hart-Flaherty can produce the notary, and the notary confesses that the notarization that she signed was perjurious, that is a different fact. It will have to be done at trial, and a declaration will not suffice; the notary needs to be live and in person and subject to cross examination. But if that is the case, and if plaintiff here was a party to the potentially fraudulent notarization, then there is at least an arguable claim of extrinsic fraud on the court, which might very well be a ground to determine some of the prior rulings or judgments void (at least in state court). That is a steep hill to climb, but that is what Hart-Flaherty says she can do. If she can do it, that has left. The court is aware of plaintiff's position that even if the deed of trust was forged, it still is not enough because all that means is that Flaherty owns the property, not that Hart-Flaherty does. Perhaps. But if the whole thing is stacked and built upon a perjurious document and if plaintiff was aware of that perjury at the time the notarization occurred, that at least piques the court's interest.